



**153rd GENERAL ASSEMBLY  
FISCAL NOTE**

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| <b>BILL:</b>        | <b>SENATE BILL NO. 32</b>                                                                                                              |
| <b>SPONSOR:</b>     | <b>Senator Hoffner</b>                                                                                                                 |
| <b>DESCRIPTION:</b> | <b>AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO PRIVACY FOR CORRECTIONAL OFFICERS, AND PROBATION AND PAROLE OFFICERS.</b> |

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**Assumptions:**

1. This Act becomes effective 180 days upon signature by the Governor.
2. This Act allows for active, formerly active, or retired correctional officers and probation and parole officers (collectively "officers") from the Department of Correction (DOC) and their eligible family members to make a written request that their personal information not be published and remain confidential for those who serve or served on or after the effective date of the Act. This Act also allows for officers to continue their enrollment upon retirement or departure from their position in good standing for up to two-years from the date of their retirement or date of leave.
3. The DOC has an estimated 2,200 active positions that could be eligible based on the provisions of this Act. For this fiscal projection, it is assumed that 12.5% of officers in active positions of those eligible may participate, resulting in an estimated 275 active DOC employees that may opt-in for this program once it is implemented.
  - a. The number of eligible family members who may elect to enroll in the program is unknown and indeterminable.
  - b. Enrollment in the program will likely increase over time as program implementation and communication about the program is disseminated among employees. However, since the growth is unknown and indeterminable, it has not been factored into this fiscal projection.
4. The DOC estimates that it will need an additional Human Resource Associate (HRA) to assist with developing an internal policy and procedure to submit and process written requests from eligible officers and their families. The HRA will coordinate sending notices to government agencies requesting the shielding of public information for those who opt-in. The HRA will also assist with enrolling those who opt-in with an online privacy vendor whom the DOC will retain to assist with the monitoring, removal, and shielding of publicly available information on the internet. It is estimated that the cost averages about \$100 per person annually for this service.
5. The DOC's estimated costs for Fiscal Year 2026 are \$84,654 and one-time costs of \$6,670 and are as follows:
  - a. The Fiscal Year 2026 personnel costs, including OECs at a rate of 33.34%, for the HRA FTE position are estimated at \$57,154, and one-time funding of \$6,670 for projected technology equipment and furniture costs related to the startup of this position.
  - b. \$27,500 for the estimated cost of enrolling 275 active eligible DOC employees in online privacy vendor services at \$100 annually per person.
6. Lastly, the Fiscal Year 2026 personnel costs have been estimated for nine months of funding, with the annualization of the remaining three months incorporated into the subsequent year estimate. Additionally, a 2% inflation cost has been included for projected increases in salary and OECs.

**Cost:**

|                          | <b><u>One-Time</u></b> | <b><u>Operating/Recurring</u></b> |
|--------------------------|------------------------|-----------------------------------|
| <b>Fiscal Year 2026:</b> | \$6,670                | \$84,654                          |
| <b>Fiscal Year 2027:</b> |                        | \$105,229                         |
| <b>Fiscal Year 2028:</b> |                        | \$106,784                         |

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